

(holding self-represented parties to the "same 'restrictive procedural rules as an attorney'").

While self-represented litigants are not entitled to special treatment, *McComber v. Wells* (1999) 72 Cal.App.4th 512, 522-523, trial courts are mindful of their potential lack of legal sophistication. As noted in *Petrosyan v. Prince Corp.* (2013) 223 Cal.App.4th 587, 594, “[t]rial judges must acknowledge that in *propria persona* litigants often do not have an attorney's level of knowledge about the legal system and are more prone to misunderstanding the court's requirements.” The court has a duty to ensure such litigants are not inadvertently misled. In the present case, the record is devoid of any evidence that Plaintiff was misled by either the Court or Defendant. To the contrary, the Court’s prior orders established clear deadlines for compliance with discovery obligations, which Plaintiff willfully disregarded.

Plaintiff’s Failure to Oppose the Motion

California Rules of Court, Rule 8.54(c) provides that “A failure to oppose a motion may be deemed a consent to the granting of the motion.” This principle is well-established in case law. *Cravens v. State Bd. of Equalization* (1997) 52 Cal. App. 4th 253, 257. The failure to file a timely opposition is “well-within” the court’s discretion to deem such inaction “tantamount to a concession that its position in the litigation was not substantially justified.” *Gwaduri v. I.N.S.* (9th Cir. 2004) 362 F.3d 1144, 1146 (citing *Weil v. Seltzer*, 873 F.2d 1453, 1459 (D.C. Cir. 1989)). Furthermore, a failure to address or oppose an issue in a motion constitutes a waiver of that issue. *Nazir v. United Airlines, Inc.* (2009) 178 Cal.App.4th 243, 288. Similarly, a failure to support a point with reasoned argument and relevant authority also constitutes waiver. *Badie v. Bank of America* (1998) 67 Cal.App.4th 779, 784–785.

Applied to the present matter, Plaintiff’s failure to file any opposition to the Motion for Terminating Sanctions is deemed a consent to the granting of the relief sought by Defendant.

Code of Civil Procedure § 2030.060 requires Plaintiff to serve responses to interrogatories within thirty (30) days of service. Where a party fails to serve a timely response, Section 2023(d)(3) allows the Court to impose “an order dismissing the action, or any part of the action, of that party.”

Ruling

Based on the foregoing, the Court finds good cause to grant Defendant’s Motion for Terminating Sanctions. It is therefore ordered that Defendant Hyatt Hotels Corporation’s Motion for Terminating Sanctions is **granted**. It is further ordered that this action is **dismissed** with prejudice. The Court will to execute the proposed order lodged by Defendant on September 15, 2025 and orders the Defendant to file a Judgment accordingly.

5. 9:00 AM CASE NUMBER: C23-01292
CASE NAME: PATRICIA KUBICHEK VS. MICHAEL YRUETA
HEARING IN RE: JOINDER IN DEF'S MOTION TO COMPEL PATRICIA KUBICHEK'S DEPOSITION
FILED BY: YRUETA, MICHAEL
TENTATIVE RULING:

See Tentative Ruling for Line 20, below.

6. 9:00 AM CASE NUMBER: C23-01583

CASE NAME: S A VS. EARTH SEEDS LLC

***HEARING ON MOTION IN RE: RECONSIDERATION OF ORDER GRANTING PLAINTIFF LEAVE TO AMEND TO ADD WONDERSCHOOL AS A DEFENDANT, OR IN ALT, FOR RELIEF UNDER CCP 473(B) FILED BY: WONDERSCHOOL, INC.**

TENTATIVE RULING:

Defendant Wonderschool, Inc.'s motion for reconsideration of the Court's ruling on Plaintiff S.A.'s motion for leave to amend is **granted**. The ruling in *Hohenshelt v. Superior Court* (2025) 18 Cal.5th 310 constitutes new law and therefore reconsideration is proper. Having reconsidered the Plaintiff's motion for leave to amend, the Court **denies Plaintiff's motion for leave to amend**. As to the sanctions award, the Court finds that the sanctions award remains appropriate, but reduces the amount to adjust for the new ruling that arbitration has not been waived. Therefore, the Court now orders that the sanctions awarded to Plaintiff against Wonderschool are \$7,800. If Wonderschool has already paid these sanctions, Plaintiff shall return the difference within thirty days.

Reconsideration

Wonderschool asks this Court to reconsider its ruling giving Plaintiff leave to amend to add Wonderschool to this case under Code of Civil Procedure section 1008(a). A motion under section 1008(a) must be "based upon new or different facts, circumstances, or law". In addition, "[i]f a court at any time determines that there has been a change of law that warrants it to reconsider a prior order it entered, it may do so on its own motion and enter a different order." (Code of Civil Procedure section 1008(c).)

In the Court's ruling on Plaintiff's motion for leave to amend, the Court stated that if the California Supreme Court (in *Hohenshelt*) finds that these sections are preempted, then Wonderschool may file a motion for reconsideration. That statement was not meant to exclude other possible reasons for reconsideration. Instead, that portion of the ruling was only meant to address one situation where reconsideration would be proper.

Hohenshelt v. Superior Court (2025) 18 Cal.5th 310 held that section 1281.98 is not preempted. However, the Court did change the current law in another significant way. Prior to *Hohenshelt*, the majority of court of appeal opinions found that the time limits for paying arbitration fees were strictly applied. (See, e.g. *Espinoza v. Superior Court* (2022) 83 Cal.App.5th 761.) These courts found that the failure to pay fees on time constituted a material breach and the reason for the late payment did not matter. *Hohenshelt* rejected such a strict approach. The Court explained that the intent behind these statutes was to deter bad actors, and "[n]othing in the legislative history suggests that the Legislature intended to penalize inadvertent or excusable delay". (*Id.* at 338.) The Court held that a party seeking arbitration can "avoid forfeiture of its right to arbitration by showing that the delay was excusable under section 473, Civil Code section 3275, or Civil Code section 1511, the background principles that generally apply to other contractual obligations." (*Id.* at 343.)

The Court has reviewed *Hohenshelt* and finds that, although it did not find preemption, its

interpretation of the relevant statutes provides a more flexible analysis than prior case law and as such, it counts as new law. Therefore, the Court must reconsider Plaintiff's motion for leave to amend applying the standard in *Hohenshelt*.

Plaintiff's Motion for Leave to Amend

The Court has reconsidered Plaintiff's motion for leave to amend by considering the original papers filed for and against the motion and also considering the papers filed for and against the motion for reconsideration.

Plaintiff filed this case, though his guardian ad litem, for injuries he experienced while attending Earth Seeds preschool. Plaintiff alleges that Wonderschool hosts an online marketplace where childcare centers can market their services to families. Initially, Plaintiff sued Wonderschool, but Wonderschool filed a motion to compel arbitration, which was granted. Plaintiff then dismissed Wonderschool without prejudice.

Plaintiff brings this motion arguing that Wonderschool did not timely pay its arbitration fees and that failure constitutes a material breach pursuant to Code of Civil Procedure section 1281.97. Plaintiff then seeks to add Wonderschool back to this case by seeking leave to amend his complaint. Finally, Plaintiff seeks sanctions under section 1281.99.

Material Breach of the Arbitration Agreement

Code of Civil Procedure section 1281.97 provides that in employment and consumer arbitration, the drafting party's failure to timely pay arbitration fees results in a material breach of the arbitration agreement and a waiver of the right to compel arbitration. The arbitration fees and costs must be "paid within 30 days after the due date". (Code of Civil Procedure § 1281.97(a)(1).) "The invoice shall be provided in its entirety, shall state the full amount owed and the date that payment is due, and shall be sent to all parties by the same means on the same day. To avoid delay... the arbitration provider shall issue all invoices to the parties as due upon receipt." (Code of Civil Procedure § 1281.97(a)(2).) Section 1281.98 requires the prompt payment of fees and costs during arbitration. In addition, the Court shall award sanctions against the drafting party. (Code of Civil Procedure § 1281.97(d).) Section 1281.99 requires the court to impose "a monetary sanction against a drafting party that materially breaches an arbitration agreement pursuant to subdivision (a) of Section 1281.97 or subdivision (a) of Section 1281.98, by ordering the drafting party to pay the reasonable expenses, including attorney's fees and costs, incurred by the employee or consumer as a result of the material breach."

As discussed above, in deciding whether there was a waiver of the right to arbitration under section 1281.97, the Court should consider whether the failure to pay was intentional or inadvertent or excusable. Further, the Court may consider Code of Civil Procedure section 473, Civil Code section 3275, or Civil Code section 1511 when deciding whether there should be a forfeiture of any breach.

Where there is a failure to timely pay the arbitration fees, but such failure is not "strategic, willful, grossly negligent, or fraudulent" the Court should not find that arbitration has been waived.

(*Wilson v. TAP Worldwide LLC* (2025) 114 Cal.App.5th 1077, 1090.) But a “plaintiff would still be entitled to compensation for ‘any reasonable expenses incurred by the employee or consumer as a result of its failure to timely pay arbitration fees.’ (*Hohenshelt, supra*, 18 Cal.5th at pp. 339–340.)” (*Wilson, supra*, 114 Cal.App.5th at 1090.)

Here, Plaintiff mailed his arbitration demand to JAMS and to Wonderschool at 548 Market Street, PMB 92922 in San Francisco on October 17, 2024. (Singh dec. ex. C.) It was delivered on October 22, 2024. (Singh dec. ex. D.) JAMS sent out a notice of intent to initiate arbitration and included an invoice to Wonderschool for non-refundable filing fees. (Singh dec. ex. E.) It was emailed to Wonderschool attorney Taqi-Eddin and Plaintiff’s attorney on November 18, 2024. (Singh dec. ex. E.) JAMS sent a reminder email regarding the unpaid fees on December 2, 2024. (Singh dec. ex. F.) JAMS notified the parties that it had not received the fees on January 3, 2024. (Singh dec. ex. G.) Following a second invoice, Wonderschool sent payment for these fees to JAMS on February 12, 2025, and JAMS showed receipt on February 18, 2025. (Singh dec. ex. L; Cunningham dec. ex. J.)

Wonderschool did not pay the fees within 30 days of the November 18, 2024, invoice, which was served on both sides by email. The November 2024 invoice was emailed to attorney Taqi-Eddin at the same email address used in Wonderschool’s opposition papers. There is also no evidence that Taqi-Eddin did not receive the November 2024 invoice. Thus, the evidence shows that JAMS emailed both sides the invoice and Wonderschool did not pay the fees within 30 days.

Wonderschool argues that they thought they had an agreement with Plaintiff’s prior counsel not to pay the arbitration fees. (Cunningham reconsideration dec. ¶¶11-12; Cunningham reconsideration reply dec. ¶¶12-13.) There is no formal stipulation or email or other writing that shows such an agreement. Further, the declarations of Plaintiff’s attorneys dispute that there was an agreement. (Ramos dec. ¶4; Iskra dec. ¶¶9, 11-12; Singh reconsideration dec. ¶6.) The Court is not convinced that there was an agreement to delay payment of the arbitration fees. Therefore, Wonderschool did not timely pay the fees and as such has materially breached the agreement.

Having found a material breach of the arbitration agreement, the next question is whether the breach should result in a waiver of the right to arbitrate. Under *Hohenshelt* the Court should consider whether the failure to pay was a result of surprise, mistake, inadvertence or excusable neglect.

Here, Wonderschool sought to compel arbitration and was dismissed from this action on March 2, 2023. Plaintiff filed a demand for arbitration on October 3, 2024, about one and a half years later. (Cunningham reconsideration dec. ¶¶9-10.) The arbitration demand was served by Plaintiff’s prior counsel. Wonderschool’s attorney declares that she discussed the arbitration with Plaintiff’s prior counsel and “understood that there was an agreement to stand down on paying the nonrefundable arbitration fee until a decision was made about proceeding with arbitration.” (Cunningham reconsideration dec. ¶12.) This understanding is disputed by two lawyers at Plaintiff’s prior law firm. (Ramos dec; Iskra dec.) Wonderschool’s attorney goes on to explain that she learned that Plaintiff had obtained new counsel in December 2024 and she reached out to the new attorneys on January 3, 2025 to determine whether Plaintiff intended to proceed with arbitration. (Cunningham

reconsideration dec. ¶¶14-16.) Wonderschool’s attorney continued to try to contact Plaintiff’s new attorneys several times in January 2025 regarding the status of arbitration, but did not hear back. (Cunningham reconsideration dec. ¶¶17-20 and exhibits E and F.) Finally, Wonderschool sent the arbitration payment on February 12, 2025. (Cunningham reconsideration dec. ¶22.)

The Court finds that the evidence here does not show a strategic decision to avoid timely paying the arbitration fees. Rather, the evidence shows that Wonderschool’s attorney was mistaken about the need to pay the arbitration fees by December 18, 2024. The mistaken belief was further compounded by Plaintiff switching attorneys in December 2024 and Wonderschool’s attorney not being able to speak with Plaintiff’s new attorney in January 2025, despite several attempts to do so. Overall, the evidence shows that Wonderschool’s failure to timely pay the arbitration fees was a result of mistake or excusable neglect and as such, the Court finds that Wonderschool should not be required to forfeit their right to arbitration. Therefore, upon reconsideration, the Court denies Plaintiff’s motion for leave to amend.

Other Arguments Against Motion for Leave to Amend

The Court has not changed its ruling on the remaining issues raised by Wonderschool in opposing the motion for leave to amend.

Wonderschool argues that without proper service the November invoice does not count. Wonderschool argues that they were not properly served with the arbitration demand because Plaintiff mailed it to the wrong address. Wonderschool argues that the Code of Civil Procedure governs service of process of a demand for arbitration since the terms of use do not address service. Here, Wonderschool’s terms of use required Plaintiff to mail the arbitration demand to “Wonderschool at 548 Market Street, PMB 92922, San Francisco”. (Cunningham dec. ex. O at p. 87.) The Court finds that Plaintiff complied with Wonderschool’s terms of use by mailing the arbitration demand to the address required by Wonderschool. Thus, Wonderschool has not shown that they were not served with the arbitration demand by the time JAMS sent out the invoice in November 2024.

Wonderschool also argues that Plaintiff sent the demand to Wonderschool and not to its counsel. The arbitration agreement did not require Plaintiff to send a copy of the arbitration demand to Wonderschool’s attorneys. Nor has Wonderschool explained why the California Rules of Court would apply to the JAMS arbitration proceedings. Therefore, this argument fails.

Finally, Wonderschool argues that arbitration has begun and therefore there can be no breach. The arbitrator cannot cure a missed or late payment under section 1281.97. (*Trujillo v. J-M Manufacturing Co., Inc.* (2024) 107 Cal.App.5th 56, 67; *Hohenshelt, supra*, 99 Cal.App.5th at 1325.) Since the Court finds a material breach by Wonderschool it does not matter that JAMS opened the arbitration.

Sanctions

Under section 1281.97(d) “If the employee or consumer proceeds with an action in a court of appropriate jurisdiction, the court shall impose sanctions on the drafting party in accordance

with Section 1281.99.” (Code of Civil Procedure §1281.99.)

Section 1281.99 states that “[t]he court shall impose a monetary sanction against a drafting party that materially breaches an arbitration agreement pursuant to subdivision (a) of Section 1281.97 or subdivision (a) of Section 1281.98, by ordering the drafting party to pay the reasonable expenses, including attorney’s fees and costs, incurred by the employee or consumer as a result of the material breach.” (Code of Civil Procedure § 1281.99(a).) Additional non-monetary sanctions can also be awarded. (Code of Civil Procedure § 1281.99(b).)

Previously, the Court found that attorney fees should be awarded under both sections 1281.97(d) and 1281.99(a). Upon reconsideration, the Court finds that section 1281.97(d) is no longer applicable. Still, there was a material breach of the arbitration agreement and therefore fees should be awarded under section 1281.99(a). Further, *Hohenshelt* explained that Civil Code section 3275 provides an excuse for a party who material breached the agreement provided that they make full compensation to the other party for any losses resulting from the delay. (*Hohenshelt, supra*, 18 Cal.5th at 333.) Therefore, the Court may still require Wonderschool to pay attorney fees as a monetary sanction for materially breaching the agreement under section 1281.99.

In the motion for leave to amend, Plaintiff’s counsel sought \$16,950 in fees and costs. Plaintiff spent \$250 in arbitration costs. Plaintiff’s counsel also declares that their reasonable hourly rate is \$650 and they spent 10 hours preparing the motion for leave to amend and 6 hours opposing the motion to compel and anticipate spending 2 more hours on the reply and preparing for the hearing. Wonderschool points out the fees would only be \$11,700 and with the arbitration costs included the total is \$11,950. The Court finds that the amount opposing the motion to compel and the \$250 in arbitration costs should no longer be included as sanctions. Therefore, the new amount of sanctions awarded against Wonderschool is \$7,800 (12 hours at \$650 per hour).

7. 9:00 AM CASE NUMBER: C23-01810
CASE NAME: KEVIN HUMPHREY VS. JASVIR SINGH SHAHI
HEARING ON SUMMARY MOTION
FILED BY:

TENTATIVE RULING:

Before the Court is Defendant Dillard Trucking, Inc.’s Motion for Summary Judgment (“MSJ”).

While the motion is captioned as one for “Summary Judgment, or in the alternative, Summary Adjudication,” the Notice and Points and Authorities make clear that the motion is one for summary judgment only. The Notice indicates that Defendant Dillard Trucking moves the “Court for an Order granting summary judgment in its favor and against Plaintiffs Kevin Humphrey and Dawn Humphrey (“Plaintiffs”).” In addition, both the Introduction and Conclusion of the Ps and As indicate that Defendant seeks an order granting “summary judgment” in its favor – not mentioning summary adjudication.

“A basic tenant of motion practice is that the notice of motion must state the grounds for the order being sought [cites], and the court generally may consider only the grounds stated in the notice of